

Who Made the Determination?

A letter changed your AISH status. The government says no decision was made. Both cannot be true — and either answer is a problem.

In administrative law, a determination is an official or final decision reached by a decision-maker about a person's rights or status. This spring, tens of thousands of AISH recipients received a letter that changed their status — some kept on AISH, the rest moved to the new Alberta Disability Assistance Program (ADAP). When recipients ask whether they can appeal being moved, they are told the move is automatic and that no determination was made, so there is nothing to appeal. This document holds that answer against the letters themselves. The two cannot both stand.

1. The letters are the proof a determination was made

Every recipient was sorted into one of two outcomes, and every recipient was told the result in writing. The letters keeping a person on AISH say it plainly: *“you have met the eligibility criteria to remain on AISH.”* That sentence is a determination — a finding that a person does, or does not, meet a defined standard. The letters moving a person to ADAP communicate the opposite outcome. A result was reached for every single recipient, and every single recipient was notified of it. Something decided. The word “automatic” describes how the result was processed and mailed; it does not erase the fact that a result was reached and acted upon.

2. The fork: both answers cost them

This leaves the government with two possible answers, and each one is a problem of its own.

EITHER — A DETERMINATION WAS MADE

Then it is a determination, and the position that “no determination was made, so you cannot appeal” does not hold. The question becomes the obvious one: who made it, under what authority, and how is it appealed?

OR — NO DETERMINATION WAS MADE

If the move truly was automatic, by operation of law, with no individualized decision about anyone, then the government has changed the program status of roughly 79,290 disabled Albertans — cutting the base benefit from \$1,940 to \$1,740 and the employment earnings exemption from \$1,072 to as little as \$350 — without making a determination about a single one of them. That is not a smaller problem than the first. It is a larger one.

There is no third door. “It was automatic” is not an escape from the fork — it is the second prong of it.

3. What the determination actually was — and was not

There is a further point, and it is the sharpest. The sort that placed a person in the “move” group was not a finding that the person can work. It was a check against four narrow categories that keep a person on AISH automatically: a severe and profound developmental disability or PDD eligibility; a palliative or terminal condition; advanced age combined with severe disability; and institutional residency. A person who did not fall into one of those four categories was moved to ADAP by default. No one assessed their capacity to work. No one re-examined their disability. They were not determined employable — they were determined *not to be in one of four boxes*, and their income was changed on that basis. The decision that did the most consequential work in a person’s life turns out to rest on category-matching, not on any assessment of the person.

4. The authority question

A determination that changes a person’s disability benefits must be made by a decision-maker with the lawful authority to make it. The government has not published who makes these determinations, or under what delegated authority they are made. That silence is not a technicality. When a decision alters the income of tens of thousands of people with disabilities, who made it — and whether they were authorized to — is a question the public is entitled to have answered in writing. The absence of that answer is itself part of the record.

5. The question to put in writing

Every recipient, and this campaign, is entitled to a written answer to a single question. It is reproduced here so that anyone can ask it of the office that issued their letter:

THE QUESTION

“My letter communicates a determination affecting my AISH eligibility. Please confirm in writing: was a determination made? If a determination was made, identify who made it, under what delegated authority, and how it may be appealed. If no determination was made, identify the lawful basis on which my program status was changed without one.”

There is no answer to that question that resolves the contradiction in the government’s favour. Naming the decision-maker concedes a determination was made; declining to name one concedes the status was changed without one. That is the point of asking it.

6. What the documented record establishes

- A letter communicating an outcome was sent to every AISH recipient; an outcome was determined for each.
- The position that no determination was made cannot be reconciled with the letters, which state outcomes in plain terms.
- If a determination was made, the authority behind it must be disclosed and the route to appeal it identified; if it was not, the program status of roughly 79,290 people was altered without one.
- The sort rested on membership in four narrow retain categories, not on any assessment of a person’s capacity to work.

The campaign alleges no motive. It places the letters next to the claim that no determination was made, and asks the question the contradiction forces. The government is invited to answer it in writing.

This is general information, not legal advice. Anyone weighing an appeal, a reapplication, or a complaint should contact the Appeals Secretariat (780-427-2709) or a disability-rights lawyer or legal clinic.

Sources: Government of Alberta AISH transition letters, May 12, 2026 ("remain on AISH" and ADAP-transition versions). ADAP Fact Sheet and program page, alberta.ca (four automatic-retain categories; base benefit \$1,740; AISH base \$1,940; AISH exemption \$1,072; ADAP exemption \$700). Alberta Regulation 87/2026 (appeal exemptions) and Alberta Regulation 96/2026 (unified General Regulation), both in force July 2, 2026. Bill 12, Financial Statutes Amendment Act, 2025 (No. 2), passed December 9, 2025.

The Alberta Disability System Breakdown — Advocate

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